



POLICE DEPARTMENT

June 4, 2018

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In the Matter of Charges and Specifications	:	Case No.
- against -	:	2017-17598
Police Officer Marvalyn Campbell	:	
Tax Registry No. 928007	:	
115 th Precinct	:	

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At: Police Headquarters
One Police Plaza
New York, New York 10038

Before: Honorable Paul M. Gamble
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Jamie Moran, Esq.
Department Advocate's Office
One Police Plaza
New York, NY 10038

For the Respondent: Michael Martinez, Esq.
Worth, Longworth & London, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE JAMES P. O'NEILL
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NEW YORK 10038

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CHARGES AND SPECIFICATIONS

1. Said Police Officer Marvalyn Campbell, while on-duty and assigned to the Communications Division, on or about April 25, 2017, upon being dismissed from her court appearance, failed and neglected to call the Desk Officer at her Command, as required.
P.G. 211-01, Page 2, Paragraph 19 DUTIES AND CONDUCT IN COURT
2. Said Police Officer Marvalyn Campbell, while on-duty and assigned to the Communications Division, on or about April 25, 2017, upon returning to her command from court, failed and neglected to sign the Return Roll Call, as required.
P.G. 206-03, Page 1, Paragraph 2 VIOLATIONS SUBJECT TO COMMAND DISCIPLINE
3. Said Police Officer Marvalyn Campbell, while on-duty and assigned to the Communications Division, on or about April 26, 2017, while being instructed by New York City Police Sergeant John Flynn, Tax Number 903953, regarding her responsibilities when returning from court and leaving the command, said Police Officer was discourteous, in her tone and demeanor, in that she raised her voice.
P.G. 203-09, Page 1, Paragraph 2 PUBLIC CONTACT – GENERAL

REPORT AND RECOMMENDATION

The above-named member of the department appeared before me on May 7, 2018.

Respondent, through her counsel, entered pleas of Guilty to the subject charges and testified in mitigation of the penalty. The Department called Sergeant John Flynn as a witness. A stenographic transcript of the mitigation record has been prepared and is available for the Police Commissioner's review.

Respondent, having pleaded Guilty, is found Guilty of all Specifications.

Respondent testified that she is a 17-year Member of this Department. After spending years on patrol in the 49th Precinct and PSA-8, she requested a transfer to the Communications Division. Respondent's transfer was approved in 2016, and she was assigned to First Platoon (Tr. 7-8).

On April 25, 2017, Respondent completed her regular tour at the Communications Division before heading to traffic court in the Bronx on overtime to testify regarding a summons she had issued while still working patrol. Upon her arrival at court at approximately 0905 hours, she was informed that the complainant had not appeared and that the case was being adjourned. Respondent left the building at approximately 0915 with the intention of returning to the Communications Division to drop off her overtime slip. Respondent acknowledged that she did not contact the Desk Officer prior to departing the court building. Although aware that the Patrol Guide required her to call the Desk Officer, it was Respondent's experience that the rule was not strictly observed (Tr. 10-13, 20, 23-24, 32).

When Respondent returned to her command approximately 15 minutes later, she retrieved her things from her locker and prepared to depart. She noted that she was in a rush to relieve her [REDACTED] who was caring for her [REDACTED]. Prior to leaving the building, Respondent left a completed overtime slip in the administrative area. Respondent acknowledged that she failed to sign both the Return Roll Call log, as well as the Command Log, despite being aware that she was required to do so. According to Respondent, in her prior experience, the requirements for signing in and out of logs were not strictly enforced (Tr. 10-13, 24-25, 34).

Several hours later that day, Respondent received a telephone call from Sergeant John Flynn, the Second Platoon supervisor. According to Respondent, Sergeant Flynn informed her that she had failed to sign into the Return Roll Call, and out of the Command Log, before she went off duty. Respondent testified that she was apologetic, characterizing her failures as an oversight (Tr. 12-13, 26).

On the morning of April 26, 2017, Respondent was in the process of signing out of the Command Log near Sergeant Flynn's desk. According to Respondent, Sergeant Flynn started to

Speak to her regarding her omissions on April 25th, but she advised him that she really had to leave and couldn't hear what he had to say at that moment. Respondent acknowledged that the tone of voice she used may have been perceived as loud and dismissive, and was discourteous under the circumstances. Respondent testified that she did not perceive what Sergeant Flynn was about to say to her was an official admonition and that she was rushed because her [REDACTED] had informed her that her roof had malfunctioned, resulting in water collecting in her basement and she had set up an appointment with a contractor at her home that morning. In addition, she was trying to get home quickly to take her [REDACTED] to school (Tr. 14-16, 28-29).

Respondent testified that when she went off duty on April 26th, she had several days off. When she returned to the command, she encountered Sergeant Flynn. According to Respondent, she attempted to speak to him and apologize for speaking to him in an abrupt manner on April 26th. Respondent claimed that Sergeant Flynn told her, "I don't want to hear it," and advised her that she would be receiving a Schedule B Command Discipline. Respondent noted that about three weeks after this incident, she was notified, without any further explanation, that she was being transferred to the 115th Precinct in Queens (Tr. 16-18, 27-28).

Respondent acknowledged that she understood that there was an important organizational rationale for requiring her to contact the Desk Officer when she concluded her duties at court; for signing back into the command; and for signing out of the Command Log. Respondent further acknowledged that she was considered officially on duty until she properly signed out of the appropriate logs (Tr. 31-36).

Sergeant John Flynn testified that he was the Second Platoon supervisor at the Communications Division in the Bronx. He recounted that he saw Respondent as she was on her way to court on April 25, 2017, and inquired how she was traveling to court, whether by RMP or

mass transit. According to Sergeant Flynn, Respondent replied, "[In] my own car; that's how we do it in the Bronx," as she was walking away. Sergeant Flynn did not see Respondent again that day but, several hours later, observed an overtime slip bearing her name. Sergeant Flynn checked both the Return Roll Call and the Command Log to discover that Respondent had not signed back into the command after returning from court, and had also failed to sign out of the Command Log after going off duty (Tr. 38-40).

Sergeant Flynn testified that he called Respondent from his mobile phone to ensure her well-being, as well as to put her on notice that she had failed to comply with the command's notice and log procedures. According to Sergeant Flynn, when he told Respondent that she had failed to sign in the Return Roll Call or out of the Command Log, she replied, "I don't have to. My overtime slip is good enough." Sergeant Flynn asserted that Respondent's tone was not apologetic, but argumentative (Tr. 40-42, 50).

Sergeant Flynn next encountered Respondent the next morning as she was signing out of the Command Log and going off duty. According to Sergeant Flynn, as he attempted to admonish her for the failure to sign out of the log, she said, in a loud voice, "Enough, enough!" At the time Respondent made the aforementioned statement to Sergeant Flynn, another sergeant was present. Sergeant Flynn, after hesitating for a moment, stood up and continued to address Respondent as she walked away, stating "Marvalyn, I'm reinstructing you from yesterday." He claimed that after he told her that she was to sign out of the Command Log in the future, she called out over her shoulder, "Exactly, exactly!" Sergeant Flynn discussed the encounter with his supervisor, who advised him that Respondent would have to be issued a command discipline. According to Sergeant Flynn, his supervisor also conferred with the commanding officer, after which she affirmed her direction to him to prepare a "B" command discipline. After preparing a

command discipline document in accordance with the direction he had been given, Sergeant Flynn was then directed to confer with the Department Advocate's Office. He confirmed that six days after their prior encounter, Respondent did apologize to him and he advised her that though he appreciated the apology, she would be receiving a command discipline (Tr. 43-49).

Sergeant Flynn testified that the rationale behind the requirement for MOS to contact the Desk Officer at the conclusion of a court appearance is to maintain accountability for on-duty personnel, in addition to providing for further assignment according to the needs of the Department. He asserted that he was accountable to his own supervisor for on-duty personnel and their whereabouts (Tr. 51-52).

I credit Respondent's testimony insofar as she made admissions to committing the charged misconduct, against her interests, which statements are generally considered reliable. In weighing her credibility with respect to the evidence of mitigation she offered, however, I considered that she is an interested witness in this proceeding. I do not credit Respondent's testimony with respect to her telephone conversation with Sergeant Flynn on April 25th and her interaction with him on April 26th. Respondent's factual assertions, when considered in the context of the entire record, seem tailored to minimize the seriousness of her misconduct, but not to a degree that the Tribunal questions the providence of her pleas of guilty.

I credit the testimony of Sergeant Flynn with respect to his assertions that Respondent told him in the April 25th telephone call that she did not have to sign out of the Command Log. I further credit Sergeant Flynn's assertion that Respondent said, "Enough, enough!" as he attempted to instruct her on her failure to follow proper log procedures. While Respondent argues that Sergeant Flynn is invested in the outcome of this proceeding, I find any such interest to be no greater than any other supervisor who testifies regarding an alleged discourtesy by a

subordinate. There is no credible evidence in the record of Sergeant Flynn being biased against Respondent which might otherwise undermine his veracity.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Educ., 34 N.Y.2d 222, 240 (1974). Respondent was appointed to the Department on July 2, 2001. Information from her personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Department has requested that Respondent receive a penalty of 20 vacation days. I find this recommendation to be excessive, given the nature of the misconduct of which Respondent has been found guilty.

In previous cases, Respondents have received penalties from 11 to 30 vacation days, including one-year dismissal probation, for discourtesy toward an on-duty supervisor (*Disciplinary Cases No. 2012-7375, 2014-11338* [December 3, 2015]) [Ten-year police officer with no prior formal disciplinary record forfeited 30 vacation days and one year dismissal probation for failing to follow his sergeant's order and speaking to his sergeant in a discourteous manner. The court credited the testimony of the sergeant who ordered Respondent multiple times to stop calling the command unnecessarily. When Respondent returned to the command, he told the sergeant, in sum and substance, "speak to me like a man or speak to my delegate." The court did not credit Respondent's explanation that this statement to his sergeant was just an innocuous request for representation. In unrelated incidents, Respondent was charged with and admitted that he had unauthorized facial hair, was smoking while in uniform in public view, was away from his fixed post, was late for his scheduled tour on six occasions, submitted a request for overtime when in actuality he was late for duty, operated an unregistered vehicle with an

expired inspection sticker and was absent from his residence while on sick report]; *Disciplinary Case No. 2014-12537* [November 18, 2015][Eight-year police officer with no prior disciplinary record forfeited 25 vacation days for acting in a discourteous manner toward her sergeant when the sergeant asked her why she had not reported to her post after roll call. The Court credited the testimony of the sergeant and found that although Respondent did not like the manner in which the sergeant spoke to her, in a paramilitary organization, supervisors are not required to speak politely to their subordinates. Respondent was also issued a notification to appear at an official Department interview about this incident but refused to sign it. The Court found that the Patrol Guide explicitly requires an officer to sign and promptly return the notification to the supervisor. In an unrelated incident, the Court credited a sergeant's testimony that Respondent was 40 minutes late to her post because she was sitting at a Starbucks coffee shop eating. In a second unrelated incident, she admitted to being late for roll call on two occasions]; *Disciplinary Case No. 2015-14337* [June 23, 2016][Eleven-year police officer with no prior formal disciplinary history forfeited 12 vacation days for, on two separate occasions, being discourteous to on-duty sergeants. With regard to the first incident, the tribunal found that the credible evidence proved that Respondent spoke disrespectfully and defiantly to a sergeant when told that she needed to issue more hazardous moving summonses, in that she asked, "Or else what?" During the second incident, Respondent was questioned about failing to call in a final disposition and failing to notify that she had left the confines of the precinct. Respondent's response was, "You do whatever you have to do," in a demeaning tone and slamming the door]; *Disciplinary Case No. 2015-14684* [January 23, 2017][Eleven-year police officer, with no prior disciplinary history, forfeited eight (8) vacation days and was placed on one-year dismissal probation for speaking discourteously to a sergeant in a loud and boisterous manner. Respondent was acting as the

sergeant's driver when they observed two men drinking alcohol from a bottle. They approached. Respondent confiscated the bottle and wrote the men summonses. The sergeant then asked Respondent to hand him the bottle so he could throw it out, so as to avoid an allegation that they had taken the bottle for personal use. Respondent claimed he stated that he would throw it out across the street for safety reasons, but the sergeant testified he made no such comment and simply refused to hand over the bottle after being directed to do so three times, insisting "I got this." Respondent then stated loudly, "I won't be disrespected in front of perps"]).

In this case, a 17-year MOS failed to comply with proper reporting procedures, as well as proper log protocol. I find Respondent's seniority to be an aggravating factor in this circumstance, where her own testimony conceded a casual approach to compliance with a relatively simple, yet important, requirement for the maintenance of good order and efficiency. As Sergeant Flynn testified, he, and every other supervisor above him, are accountable for the well-being of every MOS on duty during their tours. While I have no reason to discredit Respondent's assertion that she was merely following a pattern which had been established, without incident, during her service at previous commands, such laxity does not render the Patrol Guide requirements meaningless.

As for the misconduct involving discourtesy, there is no excuse for Respondent's behavior. While I credit her assertion that she was distracted by concern for the material state of her home, I do not find this circumstance mitigating. Stressors outside the workplace are a common experience; police officers, however, because of the unique challenges of their profession, must be able to compartmentalize such stressors in order to serve the public, as well as to maintain good order and discipline within the Department. Even if Respondent's tone and

language had been exactly as she described it, she failed to acknowledge Sergeant Flynn's authority to ensure compliance with Patrol Guide procedures by MOS assigned to the command.

Accordingly, I recommend that Respondent forfeit 15 vacation days.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'Paul M. Gamble', with a long horizontal line extending to the right.

Paul M. Gamble
Assistant Deputy Commissioner Trials

APPROVED

AUG 30 2018

JAMES P. O'NEILL
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER MARVALYN CAMPBELL
TAX REGISTRY NO. 928007
DISCIPLINARY CASE NO. 2017-17598

Respondent was appointed to the Department on July 2, 2001.

On her last three annual performance evaluations, Respondent twice received an overall rating of 3.5 "Highly Competent/Competent" in 2016 and 2014, and an overall rating of 4.0 "Highly Competent" in 2015.

[REDACTED]

On October 10, 2017, Respondent was placed on Level I Disciplinary Monitoring in connection with the filing of specifications and charges in this case; that monitoring remains ongoing.

Respondent has no formal disciplinary record.

For your consideration.

Paul M. Gamble
Assistant Deputy Commissioner Trials

